

BOARD OF ETHICS OF THE CITY OF PHILADELPHIA

J. Shane Creamer, Jr.	:	
Executive Director	:	
Board of Ethics of the	:	
City of Philadelphia	:	
1515 Arch Street, 18th Floor	:	Matter No: 2510ET24
Philadelphia, PA 19102	:	Date Served: October 23, 2025
Petitioner	:	
	:	
v.	:	
	:	
Dee Dukes	:	
Educational Nominating Panel	:	
deedukes33@gmail.com	:	
Respondent	:	

RESPONSE TO NOTICE OF ADMINISTRATIVE ENFORCEMENT PROCEEDING

I, Dee Dukes, (the “Respondent”) submits this written response to the Notice of Administrative Enforcement Proceeding dated October 23, 2025, regarding the Executive Director’s findings that there is probable cause to believe that Respondent, Dee Dukes, violated the City of Philadelphia’s Public Integrity Laws, and served a Notice of Administrative Enforcement Proceeding against Respondent, Dee Dukes.

I. Acknowledgment of Notice and Respondent’s Response

I acknowledge receipt of the above-referenced Notice and understand that the Board has initiated administrative enforcement proceedings concerning the issues identified therein. I also understand that I have the right to respond to the Notice in writing pursuant to the extension dated of November 17, 2025 granted in this matter.

II. Response to Right to Request a Hearing Before the Board

Respondent does not wish to request a hearing before the Board.

III. Response to Waiver of the Right to a Hearing

Respondent does not wish to request a hearing and waives the right to a hearing.

IV. Response to Applicable Provisions of Law Alleged to be Violated

Respondent denies that she violated the Philadelphia Code Section 20-610, specifically Ethics Code Section 20-610(1), as interpreted by Board Regulation No. 3.

A. Response to the Requirement to file a Statement of Financial Interest

Although Section 20-610 of the Ethics Code requires certain individuals to file a Statement of Financial Interests with the Board, the Board must provide proper notice to the individual so as to not prejudice the rights and responsibilities of the individual.

Respondent denies that proper notice was received as the Board used only an email address created for the sole, exclusive and confidential purpose and use in performing the duties required by the Educational Nominating Panel in 2024, and suggested by the Educational Nominating Panel staff to keep all other personal and business matters separate in the event there are public requests made pertaining to the “Right to Know” Law.

At the end of July 2025, Respondent received a cell phone call from the Board of Ethics staff notifying Respondent that a Statement of Financial Interest required by the Philadelphia Code was due. There was no mention during the weeks or months of the convening of the Educational Nominating Panel of the existence of a Financial Disclosure Statement referred to as the City Form that would become due at any time after serving on the Educational Nominating Committee.

In the initial cell phone call to inform Respondent that the City Form was due, Respondent had no knowledge of the existence of said City Form or even that the City Form was late. Respondent inquired about the purpose of said City Form and asked several questions regarding the relevance of completing the City Form.

In the initial telephone call and subsequent telephone calls thereafter, there was no mention of a \$250 penalty filing fee for late submissions. Also, the representative who contacted me, initially, suggested all that was needed was to complete the City Form and submit it.

Respondent stated that she did not have a copy of the required City Form prior to the Board's outreach and, therefore, was unaware of the proper procedure for completing it. Respondent's active email was provided to the Board's staff representative, and eventually Respondent received a digital copy of the City Form. Respondent did not understand how to properly complete the City Form upon receipt.

On September 25, 2025, Respondent obtained assistance to ensure the City Form was completed correctly. With assistance provided by the Board staff representative, Respondent promptly filled out the City Form and electronically submitted the City Form on September 25, 2025. Respondent acted in good faith and took the initiative to complete the City Form when notified in compliance with proper instructions and assistance provided to Respondent.

Respondent denies all allegations of violating Code Section 20-610, and any and all Regulations referred to in paragraph IV, (Applicable provisions of Law alleged to be violated).

B. Response to Penalties for violations

Respondent did not intentionally fail to file a City Form in violation of the Ethics Code. Additionally, Respondent states that timely or proper notice was not provided to her by the Board of Ethics using either her current and active email and/or mailing the requested City Form with a

Notice to File to the Respondent's home address: [REDACTED] by the deadline date of May 1, 2025.

Further, Respondent states that she never received any documents pertaining to the filing of a City Form during and/or after the convening of the Educational Nominating Panel in 2024; and that no notice was received of said failure to file the City Form would result in either a penalty of \$250 or a civil monetary penalty of \$1,000 while performing the duties while serving on the Educational Nominating Panel.

V. Response to Description of the Acts that Form the Basis of the Alleged Violation

A. Background

1. Agreed.
2. Agreed.
3. Denied in part. Respondent was a member of the Educationalal Nominating Panel that last convened in 2024. Respondent was never informed and unaware that a City Form was required to be filed for 2024 by May 1, 2025.

B. Factual Allegations

4. Denied in part. Respondent was never informed and unaware that a City Form for 2024 was to be filed by May 1, 2025.
5. Denied in part. Respondent was contacted by Board Staff after May 1, 2025 deadline.
6. Agreed. Respondent filed a City Form on September 25, 2025 after the May 1, 2025 deadline as a result of Board staff contacting Respondent by telephone.

VI. Response to Alleged Violation: Count I-Violation of Ethics Code Section 20-610(1)

7. Respondent is unclear as to the meaning and understanding of this statement.

8. Denied. Respondent did not intentionally fail to respond to filing a City Form for 2024 by May 1, 2025. Respondent was never informed and unaware that a City Form was required to be filed with the Board of Ethics, and therefore, did not violated the Ethics Code Section 20-610(1) as alleged.

WHEREFORE, Respondent respectfully requests that the Executive Director dismiss this action without penalty resulting from the alleged violation of the Philadelphia Code Section 220-610(1), which Respondent denies in whole.

Date: November 17, 2025

Respectfully submitted,



Dee Dukes, Respondent
School District of Philadelphia
Member of the Educational
Nominating Panel in 2024

Copy to: (via email)
J. Shane Creamer, Jr. Esq.
Executive Director

Richard Barzaga, Esq.
Senior Staff Attorney

Erin Ambrose, Esq.
Staff Attorney

City of Philadelphia Board of Ethics
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